

NEW YORK STATE SUPREME COURT
COUNTY OF KINGS

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RUBENZ DEUS, RICHARD STEWART,
ALEX BOULET, and KEITH BRISSETT,

Plaintiffs,

Index No.:

- against -

CITY OF NEW YORK, SHANIECE HICKS,
BRANDON PATANE, PHILIP DITTO, and
JOHN and JANE DOES 1-10,

SUMMONS

Venue is designated in
Kings County

Defendants.

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TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED and required to serve upon the attorneys for plaintiffs an Answer to the Complaint in this action within 20 days after service of this Summons, exclusive of the date of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York). In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

The basis of the venue designated is CPLR §§ 503 and 504, as Kings County is the county in which the events at issue occurred and where three of the plaintiffs.

Dated: New York, New York
July 9, 2022

LUMER LAW GROUP
Attorneys for Plaintiffs

By:



Michael Lumer, Esq.
233 Broadway, Suite 900
New York, New York 10279
(212) 566-5060

Defendants' Addresses:

The City of New York
Office of the Corporation Counsel
100 Church Street
New York, New York 10007

PO Shaniece Hicks, Tax 967111
67 Precinct Station House
2820 Snyder Avenue
Brooklyn, NY 11226

PO Brandon Patane, Tax 961077
67 Precinct Station House
2820 Snyder Avenue
Brooklyn, NY 11226

Sgt. Philip Ditto, Shield 3147
67 Precinct Station House
2820 Snyder Avenue
Brooklyn, NY 11226

NEW YORK STATE SUPREME COURT
COUNTY OF KINGS

----- X

RUBENZ DEUS, RICHARD STEWART,
ALEX BOULET, and KEITH BRISSETT,

Plaintiffs,

Index No.:

- against -

VERIFIED COMPLAINT

CITY OF NEW YORK, SHANIECE HICKS,
BRANDON PATANE, PHILIP DITTO, and
JOHN and JANE DOES 1-10,

Defendants.

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Plaintiffs RUBENZ DEUS, RICHARD STEWART, ALEX BOULET, and KEITH
BRISSETT, by their attorneys, the Lumer Law Group, hereby allege upon information and
belief as follows:

1. At all times hereinafter mentioned, plaintiff RUBENZ DEUS was an adult
resident of Kings County, in the City and State of New York.
2. At all times hereinafter mentioned, plaintiff RICHARD STEWART was an adult
resident of Kings County, in the City and State of New York.
3. At all times hereinafter mentioned, plaintiff ALEX BOULET was an adult
resident of Richmond County, in the City and State of New York.
4. At all times hereinafter mentioned, plaintiff KEITH BRISSETT was an adult
resident of Kings County, in the City and State of New York.
5. At all relevant times hereinafter mentioned, defendant City of New York (the
“City”) was and is a municipal corporation duly organized and existing under and by virtue of
the laws of the State of New York and acts by and through its agencies, employees and agents,

including but not limited to, the New York City Police Department (“NYPD”) and its employees and agents.

6. At all relevant times hereinafter mentioned, defendant SHANEICE HICKS was employed by the City as a member of the NYPD, Tax No.: 967111. HICKS is sued herein in her individual capacity.

7. At all relevant times hereinafter mentioned, defendant BRANDON PATANE was employed by the City as a member of the NYPD, Tax No.: 961077. PATANE is sued herein in his individual capacity.

8. At all relevant times hereinafter mentioned, defendant PHILIP DITTO was employed by the City as a member of the NYPD, Shield No.: 3147. DITTO is sued herein in his individual capacity.

9. At all relevant times hereinafter mentioned, defendants JOHN and JANE DOES 1-10, were individuals employed by the City as members of the NYPD whose full and complete identities are unknown to plaintiffs at this time. The Doe defendants are sued herein in their individual capacity.

10. During the morning hours of April 10, 2021, the plaintiffs were lawfully present inside a residential apartment building located at 491 East 45 Street in Brooklyn, New York (the “premises”).

11. None of the plaintiffs resided at the premises.

12. While the plaintiffs were present at the location, various members of the NYPD arrived and took plaintiffs into custody at gunpoint.

13. There were other individuals present at the premises who were also arrested.

14. Defendants Hicks and Patane are believed to have been present at the arrest and Hicks was the arresting officer for each of the plaintiffs.

15. Defendant Ditto was at all relevant times herein a sergeant with supervisory authority over Hicks and Patane.

16. The plaintiffs removed from the premises in handcuffs and taken to the 67 precinct.

17. The plaintiffs remained in custody at the station house for a period of many hours until they were transported to Kings County Central Booking.

18. The plaintiffs remained in the City's custody at Central Booking until the late evening hours of April 12, 2021.

19. The Kings County District Attorney declined to prosecute the plaintiffs at that time and the plaintiffs were released from custody without being criminally charged.

20. At no time did defendants have probable cause to arrest any of the plaintiffs on April 10, 2021.

21. The arrests were made by, with, or pursuant to the directions of Ditto and other supervisory officers.

22. The Doe defendants are those members of the NYPD who participated in the decision to arrest the plaintiffs, physically participated in taking the plaintiffs into custody, or directed other officers to make the arrests.

23. To the extent that any of the individual defendants, including the Doe defendants, did not affirmatively participate in the decision to arrest plaintiffs, or the arrests themselves, communications with the KCDA as alleged herein, each such defendant was aware

that the other individual defendants were engaged in unconstitutional conduct, that plaintiffs' rights were being and would continue to be violated, and failed to take any steps to intervene in said unconstitutional conduct or otherwise protect plaintiffs from harm, despite ample opportunity to do so.

24. The individual defendants, including the Doe defendants, are therefore liable for the false arrest and imprisonment of the plaintiffs, because of their personal actions and their deliberate failure to intervene in the other's unconstitutional conduct, and were, at all relevant times herein, acting jointly and in concert.

25. That at all times relevant herein, the defendants were on duty and acting within the scope of their employment, and their acts were done in furtherance of the City of New York's interests and without legal justification or excuse.

FIRST CAUSE OF ACTION

(Violation of Civil Rights Pursuant to 42 USC §1983
Against the Individual Defendants)

26. Plaintiffs RUBENZ DEUS, RICHARD STEWART, ALEX BOULET, and KEITH BRISSETT repeat and reallege each and every allegation set forth in the preceding paragraphs as if more fully set forth at length herein.

27. All of the aforementioned acts of defendants, their agents, servants and employees, were carried out under the color of law.

28. All of the aforementioned acts deprived plaintiffs of the rights, privileges and immunities guaranteed to citizens of the United States by the Fourth, Sixth, and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

29. The acts complained of were carried out by the individual defendants in their capacity as police officers, with all the actual and/or apparent authority attendant thereto, and pursuant to the customs, usages, practices, procedures, and the rules of the City of New York and the New York City Police Department, all under the supervision of ranking officers of said department.

30. The individual defendants, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of the NYPD and thereby the City of New York, which is forbidden by the Constitution of the United States.

31. The acts complained of deprived plaintiffs of their right:

- a. not to be deprived of liberty without due process of law;
- b. to be free from seizure and arrest absent probable cause;
- c. to receive equal protection under the law; and,
- d. to be free from unwarranted and malicious criminal prosecution.

32. By reason thereof, the individual defendants have violated 42 U.S.C. §1983 and caused plaintiffs to suffer emotional injuries, mental anguish, loss of liberty, economic loss, and the loss of their constitutional rights, in an amount in excess of the jurisdictional minimum of this Court, and to be further entitled to punitive damages in a sum to be determined at trial.

SECOND CAUSE OF ACTION

(False Arrest and Imprisonment Pursuant to 42 USC §1983
Against the Individual Defendants)

33. Plaintiffs D RUBENZ DEUS, RICHARD STEWART, ALEX BOULET, and KEITH BRISSETT repeat and reallege each and every allegation set forth in the preceding paragraphs as if more fully set forth at length herein.

34. The individual defendants willfully and intentionally seized, arrested, and caused plaintiffs to be imprisoned without any lawful basis, much less probable cause, and lacked any reasonable basis to believe probable cause existed.

35. To the extent that any of the individual defendants did not affirmatively seize or place plaintiffs under arrest, each such defendant was aware that plaintiffs' constitutional rights were being and would continue to be violated, and failed to take any steps to intervene in said unconstitutional conduct or otherwise protect plaintiffs from harm, despite ample opportunity to do so.

36. As a result of their unlawful arrest by the defendants, plaintiffs were imprisoned and deprived of their liberty.

37. Plaintiffs were conscious of the deprivation of their liberty and did not consent to any such deprivation.

38. By reason thereof, the individual defendants have violated 42 U.S.C. §1983 and caused plaintiffs to suffer emotional injuries, mental anguish, loss of liberty, economic loss, and the loss of their constitutional rights, in an amount in excess of the jurisdictional minimum of this Court, and to be further entitled to punitive damages in a sum to be determined at trial.

THIRD CAUSE OF ACTION

(Excessive Force Pursuant to 42 USC §1983
Against the Individual Defendants)

39. Plaintiffs RUBENZ DEUS, RICHARD STEWART, ALEX BOULET, and KEITH BRISSETT repeat and reallege each and every allegation set forth in the preceding paragraphs as if more fully set forth at length herein.

40. The individual defendant, including the Doe defendants, used physical force or caused physical force to be used against the plaintiffs to seize, detain, arrest, and imprison each plaintiff.

41. The defendants' use of force was objectively unreasonable or otherwise was used to further the unlawful arrest of plaintiffs.

42. The individual defendants, individually and collectively, subjected plaintiffs to excessive force in violation of the plaintiffs' rights under the Fourth Amendment to the United States Constitution.

43. By reason thereof, the individual defendants have violated 42 U.S.C. §1983 and caused plaintiffs to suffer physical and emotional injuries, mental anguish, loss of liberty, and the loss of their constitutional rights, in an amount in excess of the jurisdictional minimum of this Court, and to be further entitled to punitive damages in a sum to be determined at trial.

FOURTH CAUSE OF ACTION

(State Law Claims for False Arrest and Imprisonment
Against All Defendants)

44. Plaintiffs RUBENZ DEUS, RICHARD STEWART, ALEX BOULET, and KEITH BRISSETT repeat and reallege each and every allegation set forth in the preceding paragraphs as if more fully set forth at length herein.

45. Plaintiffs were subjected to false arrest and false imprisonment when they were intentionally, willfully, maliciously, and/or with reckless disregard, seized, searched, and arrested without probable cause by the individual defendants, and then imprisoned against their will until the KCDA directed that each plaintiff be released from custody.

46. The individual defendants, including the Doe defendants, are liable to plaintiff under state law, for false arrest and imprisonment.

47. The municipal defendant, the City of New York, is vicariously liable for the acts of the individual defendants, who were at all relevant times herein acting within the scope of their employment as subordinate officers and agents of the municipal defendant, and thus the municipal defendant is liable to plaintiffs for the aforementioned bad acts of its agents and under state law, including false arrest and imprisonment.

48. By reason thereof, the City of New York and the individual defendants have caused each of the plaintiffs to suffer emotional and physical injuries, mental anguish, lost earnings, imprisonment and the deprivation of liberty, as well as the loss of his civil rights, in an amount in excess of the jurisdictional minimum of this Court.

FIFTH CAUSE OF ACTION

(State Law Claims for Excessive Force, Assault, and Battery
Against All Defendants)

49. Plaintiffs RUBENZ DEUS, RICHARD STEWART, ALEX BOULET, and KEITH BRISSETT repeat and reallege each and every allegation set forth in the preceding paragraphs as if more fully set forth at length herein.

50. The individual defendant, including the Doe defendants, used physical force or caused physical force to be used against the plaintiffs to seize, detain, arrest, and imprison each plaintiff.

51. The defendants' use of force was objectively unreasonable or otherwise was used to further the unlawful arrest of plaintiffs.

52. The individual defendants, including the Doe defendants, individually and collectively, subjected plaintiffs to excessive force in violation of the plaintiffs' rights under state law.

53. The individual defendants, including the Doe defendants, individually and collectively, threatened plaintiffs with violence by brandishing handguns, rifles, and firearms, and pointing them at the plaintiffs. The defendants further caused plaintiffs to reasonably fear for their safety and well-being through their physical demonstrations and threats.

54. The individual defendants, including the Doe defendants, are liable to plaintiff under state law, for the use of excessive force and for assault and battery.

55. The municipal defendant, the City of New York, is vicariously liable for the acts of the individual defendants, who were at all relevant times herein acting within the scope of their employment as subordinate officers and agents of the municipal defendant, and thus the municipal defendant is liable to plaintiffs for the aforementioned bad acts of its agents and under state law, including false arrest and imprisonment.

56. By reason thereof, the City of New York and the individual defendants have caused each of the plaintiffs to suffer emotional and physical injuries, mental anguish, lost earnings, imprisonment and the deprivation of liberty, as well as the loss of his civil rights, in an amount in excess of the jurisdictional minimum of this Court.

WHEREFORE, the plaintiffs demands judgment against defendants jointly and severally as follows:

- i. actual and compensatory damages against each defendant in an amount to be determined at trial;
- ii. punitive damages against each individual defendant in an amount to be determined at trial;
- iii. statutory attorney's fees pursuant to, *inter alia*, 42 U.S.C. §1988 and New York common law, disbursements, and costs of the action; and,
- iv. such other relief as the Court deems just and proper.

Dated: New York, New York
July 9, 2022

LUMER LAW GROUP
Attorneys for Plaintiffs

By:



Michael Lumer, Esq.
233 Broadway, Suite 900
New York, New York 10279
(212) 566-5060

VERIFICATION

Michael Lumer, affirms under penalty of perjury that:

1. I am the attorney for the plaintiffs in the within action, am duly admitted to practice law before the Courts of New York State, and make this verification pursuant to CPLR 2106 and further pursuant to CPLR 3020(d)(3).

2. This verification is based on extensive interviews with plaintiffs, their prior testimony, and a review of the files and records in my possession.

3. I have read and know the contents of the foregoing Complaint, and verify the same are true based on my knowledge, except as to those matters alleged upon information and belief, and as to those matters, I believe them to be true.

4. None of the plaintiffs reside in the same county wherein my office is located and therefore I make this verification on the plaintiffs' behalf pursuant to CPLR 3020(d)(3).

Dated: New York, New York
July 9, 2022



Michael Lumer